

STATE OF NEW YORK

7779--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 10, 2025

Introduced by M. of A. STERN, GANDOLFO, BRONSON, BURDICK, CLARK, HEVESI, JACOBSON, KELLES, LEVENBERG, LUNSFORD, McMAHON, PAULIN, RAMOS, RIVERA, ROSENTHAL, SANTABARBARA, SIMON, STIRPE, WOERNER, ZINERMAN -- read once and referred to the Committee on Codes -- reported and referred to the Committee on Ways and Means -- recommitted to the Committee on Ways and Means in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to care for retired law enforcement and fire investigation dogs

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The executive law is amended by adding a new section 844 to
2 read as follows:

3 § 844. Care for retired law enforcement and fire investigation dogs.
4 1. Definitions. For the purposes of this section, the following terms
5 shall have the following meanings:

6 (a) "Retired law enforcement dog" shall mean a dog that was previously
7 in the service of or utilized by a law enforcement agency or a correc-
8 tional agency in this state for the principal purpose of aiding in the
9 detection of criminal activity, enforcement of laws, or apprehension of
10 offenders and that received certification issued by the division or by
11 the division of state police attesting to the satisfactory completion of
12 a police canine training program.

13 (b) "Retired fire investigation dog" shall mean a dog previously in
14 the service of or utilized by a fire department as an ignitable liquid
15 detection canine or otherwise trained to assist in fire investigation
16 and that received certification issued by the office of fire prevention
17 and control within the division of homeland security and emergency
18 services or through another recognized fire investigation canine train-
19 ing program attesting to the satisfactory completion of such training.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (c) "Law enforcement agency" shall mean any agency or department of
2 any municipality, any police district, or any agency, department,
3 commission, authority or public benefit corporation in the state employ-
4 ing a police officer or police officers as that term is defined in
5 subdivision thirty-four of section 1.20 of the criminal procedure law.

6 (d) "Correctional agency" shall mean any agency or department operated
7 by the state, a county, municipality, or city of New York having primary
8 responsibility for the supervision, protection, care, custody, control,
9 or investigation of incarcerated individuals in the state employing
10 police officers as defined in paragraph (b) of subdivision thirty-four
11 of section 1.20 of the criminal procedure law or peace officers as that
12 term is defined in subdivision twenty-five of section 2.10 of the crimi-
13 nal procedure law.

14 (e) "Fire department" shall mean any department, agency, or unit of a
15 county, city, town, village, or fire district providing fire protection
16 or fire investigation services in this state, whether composed of paid
17 or volunteer firefighters, and may be composed of one or more fire
18 companies as defined in section three of the volunteer firefighters'
19 benefit law.

20 (f) "Veterinary care" shall mean the practice, by a veterinarian, of
21 veterinary medicine as defined in article one hundred thirty-five of the
22 education law. The term shall also include but not be limited to annual
23 wellness examinations, vaccinations, internal and external parasite
24 prevention treatments, testing and treatment of illnesses and diseases,
25 medications, emergency care and surgeries, physical therapy, veterinary
26 oncology or other specialty care, euthanasia, and cremation.

27 2. The division shall establish a veterinary care program for the care
28 of retired law enforcement and fire investigation dogs and shall promul-
29 gate rules and regulations to effectuate such program.

30 3. The program shall cover the cost of veterinary care for retired law
31 enforcement and fire investigation dogs for the remainder of the life-
32 time of such dogs provided the law enforcement agency, correctional
33 agency, or fire department elects to participate in such program.

34 4. The law enforcement agency, correctional agency or fire department
35 where such retired law enforcement or fire investigation dog served or
36 was utilized shall elect to participate in the program established
37 pursuant to subdivision two of this section.

38 5. In order to be eligible for such program, the handler or adopter of
39 such retired law enforcement or fire investigation dog shall provide
40 proof that the dog was in service as a law enforcement or fire investi-
41 gation dog for at least:

42 (a) five years; or

43 (b) was taken out of service due to an injury to the dog; or

44 (c) was taken out of service due to the dog being trained in THC
45 detection as a law enforcement dog.

46 6. A handler or adopter of an eligible law enforcement or fire inves-
47 tigation dog shall be entitled to be reimbursed for the cost of veteri-
48 nary care upon submission of a valid invoice from a veterinarian.

49 § 2. The program established by section 844 of the executive law, as
50 added by section one of this act shall be subject to an appropriation to
51 the division of criminal justice services out of any moneys in the state
52 treasury in the general fund.

53 § 3. This act shall take effect on the first of April next succeeding
54 the date on which it shall have become a law.